

Smt. Santosh Kumari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 October 2018 · Writ-C No. 34740 of 2018 · **Writ dismissed; objection to lie before Executive Engineer under clause 6.5.**

HEADNOTE

A writ challenging a post-disconnection electricity demand of Rs. 3,79,636 was dismissed. The consumer's remedy is to file an objection before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Santosh Kumari challenged a demand of Rs. 3,79,636 towards electricity dues. She said her connection was disconnected on 24 January 2008 and there had been no supply to her house thereafter, yet the department still raised the bill. After a 12 October 2018 listing for service on the licensee's counsel, the Division Bench heard the writ on 30 October 2018. Respondents included the State of Uttar Pradesh and the Executive Engineer, Madhyanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Khand-II, Budaun.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to Executive Engineer

HOLDING

A consumer aggrieved by an electricity demand, including one raised after disconnection of supply, has a remedy of filing an objection before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ petition is dismissed with liberty to approach the Executive Engineer. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POST-DISCONNECTION DEMAND OF RS. 3,79,636 WAS PAYABLE

Merits of the bill left to the Executive Engineer on a clause 6.5 objection. ¶ 2